



CHAPTER 44.

An Act to increase the rates of benefit and contributions payable under the Unemployment Insurance Acts, 1935 to 1939, to amend section thirty-five of the Unemployment Insurance Act, 1935, Part II of the First Schedule thereto, and section thirty-six of the Unemployment Assistance Act, 1934, and for purposes connected with the matters aforesaid. [25th July 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The weekly rates of benefit (other than agricultural benefit) payable under section thirty-six of the Unemployment Insurance Act, 1935 (in this Act referred to as "the principal Act") shall be increased—

Increase of rates of benefit.
25 & 26
Geo. 5. c. 8.

(a) by three shillings in the case of men and women, and in the case of young men and young women who by virtue of the proviso to the said section are entitled to benefit at the same rate as men and women respectively; and

(b) by two shillings in the case of other young men and young women;

and accordingly the Unemployment Insurance Acts, 1935 to 1939, shall have effect as if the provisions of Part I of

the First Schedule to this Act were substituted for the provisions of the Fourth Schedule to the principal Act.

26 Geo. 5. &
1 Edw. 8.
c. 13.

(a) by three shillings in the case of men, and in the case of young men who by virtue of the said proviso are entitled to benefit at the same rate as men; and

(b) by two shillings in the case of other young men and in the case of women and young women;

and accordingly the Unemployment Insurance Acts, 1935 to 1939, shall have effect as if the provisions of Part II of the First Schedule to this Act were substituted for the provisions of the Third Schedule to the Unemployment Insurance (Agriculture) Act, 1936.

(3) The maximum weekly rate of agricultural benefit shall be increased by six shillings; and accordingly subsection (4) of section thirty-nine of the principal Act shall have effect as if the words "forty-one shillings" were substituted for the words "thirty-five shillings".

(4) This section shall come into operation on the first day of August nineteen hundred and forty.

**Increase of
rates of
contri-
butions.**

2.—(1) The weekly rates of contributions (other than agricultural contributions) payable under section eight of the principal Act by men, women, young men and young women, and their employers, shall be increased by one penny; and accordingly the Unemployment Insurance Acts, 1935 to 1939, shall have effect as if the provisions of Part I of the Second Schedule to this Act were substituted for the provisions of the Third Schedule to the principal Act.

(2) The weekly rates of agricultural contributions payable as aforesaid by virtue of section two of the Unemployment Insurance (Agriculture) Act, 1936, shall be increased by one halfpenny; and accordingly the Unemployment Insurance Acts, 1935 to 1939, shall have effect—

(a) during the period ending with the fifth day of July nineteen hundred and forty-two, as if the

provisions of Part II of the Second Schedule to this Act were substituted for the Second Schedule to that Act; and

- (b) after that date, as if the provisions of Part III of the Second Schedule to this Act were substituted as aforesaid.

(3) This section shall come into operation on the fifth day of August nineteen hundred and forty.

3.—(1) Subsection (1) of section thirty-five of the principal Act (which provides that any three days of unemployment within a period of six consecutive days shall be treated as a continuous period of unemployment) shall have effect as if the words “two days” were substituted for the words “three days”.

Amendment as respects continuous period of unemployment.

(2) This section shall have effect as respects any period of six consecutive days beginning on or after the first day of August nineteen hundred and forty.

4.—(1) Paragraph 9 of Part II of the First Schedule to the principal Act (which includes among excepted employments employment otherwise than by way of manual labour at a rate of remuneration exceeding two hundred and fifty pounds a year) shall have effect as if the words “four hundred and twenty pounds” were substituted for the words “two hundred and fifty pounds” in both places where those words occur.

Amendment as to exception of non-manual employment.

(2) This section shall come into operation on the second day of September nineteen hundred and forty.

5.—(1) Section thirty-six of the Unemployment Assistance Act, 1934 (which prescribes the qualifications to be fulfilled for the application of that Act to any person) shall have effect as if in paragraph (b) of subsection (1) thereof there were inserted after the word “resides” the words “or

Extension of Part II of Unemployment Assistance Act, 1934.

24 & 25
Geo. 5. c. 29.

- (iii) a person whose normal occupation is employment in respect of which, by virtue of section four of the Unemployment Insurance Act, 1940, contributions are payable under the Unemployment Insurance Acts, 1935 to 1940;”

(3) This section shall come into operation on the first day of September nineteen hundred and forty-one.

6. The Fifth Schedule to the principal Act (which sets out the provisions of that Act which may be amended by order under section fifty-nine of that Act) shall have effect as if there were included therein sections one, two and three of this Act and the Schedules to this Act.

7. There shall be defrayed out of moneys provided by Parliament —

- (a) any such increase in the sums payable out of moneys provided by Parliament by virtue of sections twenty-one, ninety-four and ninety-five of the principal Act as is attributable to the passing of the provisions of this Act increasing the rates of contributions or amending Part II of the First Schedule to the principal Act;
- (b) any such increase in the sums so payable by virtue of section ninety-six of the principal Act as is attributable to the passing of the provisions of this Act increasing the rates of benefit or amending section thirty-five of the principal Act; and
- (c) any such increase in the sums so payable by virtue of section forty-seven of the Unemployment Assistance Act, 1934, as is attributable to the passing of the provisions of this Act amending section thirty-six of that Act.

8.—(1) This Act may be cited as the Unemployment Insurance Act, 1940.

Short title,
citation,
interpreta-
tion and
extent.

(2) This Act—

(a) except in so far as it amends the Unemployment Assistance Act, 1934, shall be construed as one with the Unemployment Insurance Acts, 1935 to 1939, and may be cited together with those Acts and the Unemployment Insurance (Emergency Powers) Act, 1939, as the Unemployment Insurance Acts, 1935 to 1940; and

2 & 3 Geo. 6.
c. 92.

(b) in so far as it amends the Unemployment Assistance Act, 1934, shall be construed as one with that Act, and may be cited together with that Act and the Unemployment Assistance (Emergency Powers) Act, 1939, as the Unemployment Assistance Acts, 1934 to 1940.

2 & 3 Geo. 6.
c. 93.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment, order or regulation.

(4) This Act shall not extend to Northern Ireland except in so far as it affects provisions of the Unemployment Insurance Acts, 1935 to 1939, which extend to Northern Ireland.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

WEEKLY RATES OF BENEFIT.

PART I.

BENEFIT OTHER THAN AGRICULTURAL BENEFIT.

<i>Class of insured contributor.</i>	<i>Rate of benefit.</i>	
	<i>s.</i>	<i>d.</i>
Men who have attained the age of 21 years -	20	0
Women who have attained the age of 21 years -	18	0
Young men between the ages of 18 and 21 years-	16	0
Young women between the ages of 18 and 21 years	14	0
Boys between the ages of 17 and 18 years -	9	0
Girls between the ages of 17 and 18 years -	7	6
Boys who have not attained the age of 17 years -	6	0
Girls who have not attained the age of 17 years -	5	0

PART II.

AGRICULTURAL BENEFIT.

<i>Class of agricultural contributor.</i>	<i>Rate of benefit.</i>	
	<i>s.</i>	<i>d.</i>
Men who have attained the age of 21 years -	18	0
Women who have attained the age of 21 years -	15	0
Young men between the ages of 18 and 21 years -	15	0
Young women between the ages of 18 and 21 years	12	0
Boys between the ages of 17 and 18 years -	7	6
Girls between the ages of 17 and 18 years -	6	0
Boys who have not attained the age of 17 years -	5	0
Girls who have not attained the age of 17 years -	4	0

SECOND SCHEDULE.

Section 2.

WEEKLY RATES OF CONTRIBUTIONS PAYABLE BY
EMPLOYERS AND EMPLOYED PERSONS.

PART I.

CONTRIBUTIONS OTHER THAN AGRICULTURAL CONTRIBUTIONS.

Class of employed person to whom rate applies.	Weekly rate of contribution	
	By the employed person.	By the employer.
	<i>d.</i>	<i>d.</i>
Men who have attained the age of 21 years -	10	10
Women who have attained the age of 21 years -	9	9
Young men between the ages of 18 and 21 years -	9	9
Young women between the ages of 18 and 21 years -	8	8
Boys between the ages of 16 and 18 years -	5	5
Girls between the ages of 16 and 18 years -	4½	4½
Boys and girls who have not attained the age of 16 years -	2	2

PART II.

AGRICULTURAL CONTRIBUTIONS PAYABLE UNTIL 6TH JULY, 1942.

Class of employed person to whom rate applies.	Weekly rate of contribution	
	By the employed person.	By the employer.
	<i>d.</i>	<i>d.</i>
Men who have attained the age of 21 years -	3½	3½
Women who have attained the age of 21 years -	3	3
Young men between the ages of 18 and 21 years -	3	3
Young women between the ages of 18 and 21 years -	2½	2½
Boys between the ages of 16 and 18 years -	2	2
Girls between the ages of 16 and 18 years -	1½	1½
Boys who have not attained the age of 16 years -	1½	1½
Girls who have not attained the age of 16 years -	1	1

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Act, 1940.

2ND SCH.
—cont.

PART III.

AGRICULTURAL CONTRIBUTIONS PAYABLE ON AND AFTER
6TH JULY, 1942.

Class of employed person to whom rate applies.	Weekly rate of contribution	
	By the employed person.	By the employer.
	<i>d.</i>	<i>d.</i>
Men who have attained the age of 21 years -	4	4
Women who have attained the age of 21 years -	3½	3½
Young men between the ages of 18 and 21 years	3½	3½
Young women between the ages of 18 and 21 years - - - - -	3	3
Boys between the ages of 16 and 18 years - -	2	2
Girls between the ages of 16 and 18 years - -	1½	1½
Boys who have not attained the age of 16 years	1½	1½
Girls who have not attained the age of 16 years -	1	1

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